

26NNCV05524 26NNCV05524

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Case Number: 26NNCV05524 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV05524

MP: Defendants

Gevorg Khalatyan and Ani Kababchian

RP: Plaintiff

6724 Lankershim LLC

NOTICE:

The Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

On August 19, 2026, 6724 Lankershim LLC ("Plaintiff") filed the First Amended Complaint ("FAC") for Unlawful Detainer against Gevorg Khalatyan and Ani Kababchian ("Defendants") regarding the premises located at 6744 Lankershim Blvd., North Hollywood, CA 91606. The parties entered into a written month-to-month lease agreement.

Plaintiff alleges that Defendants were served with a 3-day notice to pay rent or quit on June 22, 2026, which expired on June 26, 2026. Plaintiff seeks possession of the premises, costs incurred in the proceedings, past-due rent of \$34,925.60, forfeiture of the agreement, and damages at \$137 per day from July 1, 2026.

MOTION ON CALENDAR:

On August 26, 2026, Defendants filed a Demurrer to the FAC. On August 28, 2026, Plaintiff filed an opposition.

LEGAL STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the

complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND

CONFER:

C.C.P. §§

430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. However, this requirement does not apply to unlawful detainer actions. (C.C.P. § 430.41(d)(2).) As this is an unlawful detainer action, there is no meet and confer requirement for this motion.

ANALYSIS:

First,

Defendants argue that the Notice is defective because it was not properly served.

The Lease at

section 23.1 states in relevant part:

Notice Requirements. All notices required or permitted by this Lease or applicable law shall be in writing and may be delivered in person (by hand or by courier) or may be sent by regular, certified or registered mail or U.S. Postal Service Express Mail, with postage prepaid or by facsimile transmission, or by email, and shall be deemed sufficiently given if served in a manner specified in this Paragraph 23. The addresses noted adjacent to a Party's signature on this Lease shall be that party's address for delivery or mailing of notices. Either Party may by written notice to the other specify a different address for notice,

except that upon Lessee's taking possession of the Premises, the Premises shall constitute Lessee's address for notice. ...

(Compl. at

Standard Multi-Tenant Shopping Center Lease – Net at p.14, § 23.1.) On page 19, under the Lessee Gevorg Khalatyan and Ani Kababchian's signature portion, Plaintiffs state their addresses as follows:

12717

Vanowen St., Apt 202, North Hollywood, CA 91605

7020

Lennox Ave., Apt 5, Van Nuys, CA 91405

(Lease at

p.19.)

Defendants argue

that the Lease's Notice Requirements provision requires that Defendants send notices to Defendants' Vanowen and Lennox addresses, relying on section 23.1's sentence: "The addresses noted adjacent to a Party's signature on this Lease shall be that party's address for delivery or mailing of notices." Defendants argue that The Three-Day Notice to Pay Rent or Quit was not served at either of these addresses.

However, section

23.1 further states: "Either Party may by written notice to the other specify a different address for notice, except that upon Lessee's taking possession of the Premises, the Premises shall constitute Lessee's address for notice."

The Three-Day

Notice's proofs of service show that it was personally served on Gevorg Khalatyan, and that Ani Kababchian was served by leaving a copy with Gevorg Khalatyan and mailing at the same address.

The Court finds service of the Three-Day Notice was proper at the Lankershim address as the Lease stated that upon Defendants' taking possession of the Premises, the Premises would constitute their address for notice purposes. The demurrer on this basis is overruled.

Second,

Defendants argue that the initial Complaint and the FAC are inconsistent because Plaintiff alleged in the Complaint, ¶4 that its interest in the premises was as "PROPERTY MANAGEMENT."

In the FAC, Plaintiff now alleges that its interest in the premises is "as owner." (FAC, ¶4.) Defendants argue that Plaintiff cannot allege that it is both the owner and property manager.

The Court does not find that allegations inconsistent.

As argued by Plaintiff, the LLC owns the property and thereby manages its own property. The demurrer on this basis is overruled.

Third,

Defendants argue that the FAC inconsistently alleges that under paragraph 6.a that the parties entered into the Lease on July 1, 2024 for \$4,120.80 monthly rent, but it did not mark paragraph 6.d for any Lease amendments. Defendants argue that the Lease states monthly rent was \$4,000, but no other addendums or amendments were attached to explain the rental increase.

The Lease at section 1.9 states the base rent was \$4,000 for the period of November 1, 2024. (Lease at § 1.9 at p.1.) Paragraph 51 or the Rent Adjustment(s) (Original Term) Standard Lease Addendum (dated June 27, 2024 and signed July 1, 2024) states that the monthly base rent shall be increased on July 1, 2025 and every 12 months thereafter during the Original Term based on the calculation stated in the document. Thus, the Lease included rental increases. The demurrer on this basis is overruled.

Lastly,

Defendants argue that Plaintiff did not properly identify its exhibits as ordered by the Court in its ruling on the prior demurrer to the initial Complaint.

Previously, the

Court observed there were issues with Plaintiff's lack of labeling exhibits and advised Plaintiff to properly label the Complaint's attachments. (Aug. 19, 2026 Minute Order at p.5.) However, the Court did not sustain the demurrer to the initial Complaint for Plaintiff's failure to label

exhibits. Similarly, the Court declines to sustain the demurrer to the FAC based on this reason but cautions Plaintiff to ensure that exhibits are properly labeled for future filings.

The demurrer is overruled.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants

Gevorg Khalatyan and Ani Kababchian's Demurrer came on regularly for hearing on September 18, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

the DEMURRER TO THE COMPLAINT IS OVERRULED. DEFENDANTS ARE ORDERED TO ANSWER.

AS NO ANSWER IS ON FILE, THE TRIAL SETTING CONFERENCE IS CONTINUED TO OCTOBER 1, 2026 AT 9:00 AM OR SUCH LATER DATE AS MAY BE STIPULATED TO BY THE PARTIES IN WRITING FILED WITH THE COURT.

PLAINTIFF TO GIVE NOTICE OF THIS ORDER.

IT IS SO ORDERED.